

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005601

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: CRAIG CHADWICK

vs.

DEFENDANT: JAGUAR LAND ROVER
NORTH AMERICA, LLC, A DELAWARE
LIMITED LIABILITY COMPANY, ET AL

NATURE OF PROCEEDINGS: MOTION –COMPEL – DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff Craig Chadwick filed a Motion to Compel Further Responses to Request for Documents, Set one, on January 13, 2026. Pursuant to Marin County Rule, Civil 2.13B, on February 6, 2026, the parties were ordered to participate in the court's Discovery Facilitator program by selecting one of the three mediators provided. Defendant Jaguar Land Rover North America ("Defendant") filed an opposition brief on April 6, 2026. Plaintiff filed a reply brief on April 14. No information was provided by either party about their participation in the mandatory Discovery Facilitator program.

The matter was called as regularly scheduled in this department on April 17, 2026, and continued based on a stipulation of the parties in an effort to continue the meet and cover process. The court ordered the parties to fill supplemental declaration to provide the court with an update of those efforts before the hearing set for June 26, 2026 at 130 pm

The court has reviewed the supplemental declaration filed by the Plaintiff dated June 17, 2026. It contains samples of transcript testimony that need more explanation as to how they fit in Plaintiff's motion. Given that Plaintiff's supplemental declaration is not helpful, Defendant's evidentiary objections to its filing are **OVERRULED**, until the court better understands the purpose of the transcript testimony.

Motion to Compel Production of Documents 1-3

Plaintiff's Request for Production, Set One, seeks documents which they allege are relevant to the asserted claims under the Song-Beverly Consumer Warranty Act ("SBA"), specifically as to Defendant's knowledge of the same or similar defects in other vehicles of the same year, make, and model as the Subject Vehicle (RFPs Nos. 1, 3). On September 15, 2025, Plaintiff propounded Request for Production of Documents, Set One, on Defendant seeking documents relating to Defendant's knowledge of the same or similar defects in other vehicles of the same

year, make, and model as the Subject Vehicle (RFPs Nos. 1, 3). Plaintiff also seeks recall notices and dealer communications regarding the same vehicle. (RFP No 2)

Plaintiff argues that Defendant has not produced the entirety of the emails, memoranda, data or investigations that could help Plaintiff establish Defendant's knowledge of the same or similar defects in other vehicles of the same year, make, and model. This evidence may establish Defendant's knowledge and inability to repair the defects, as well as its possible failure to adequately compensate Plaintiff with respect to the his/her vehicle.

1. RFP 1 seeks internal investigation and analysis documents concerning complaints similar to those raised by Plaintiff regarding vehicles of the same year, make, and model.

Defendant explains in its separate statement that these are documents that readily available to Defendant, pursuant to 49 CFR § 579.2 and 49 CFR § 579.22, and that Defendant is required to produce these documents government regulators on a quarterly basis. The discovery sought is relevant to the case in that it pertains to information that was readily available to Defendant.

Defendant responds that that it is unable to comply with this request and that pursuant to a diligent search and reasonable inquiry, no responsive documents have ever existed or have never been in possession, custody, or control of Defendant. JLRNA further provided the name and address of the organization known or believed to be in possession, custody of the documents.

Plaintiff's motion to compel RFP 1 is GRANTED. Defendant is to identify the documents Plaintiff seeks, including Safety Recalls, Special Service Messages and/or Technical Safety Bulletins that address the defects and nonconformities that were present in Plaintiff Vehicle. Defendant has not specifically identified why a response by burdensome. Defendant shall also the supporting documents which went into the TSBs/SSMs/Campaigns identified by the Plaintiff.

2. RFP 2 seeks documents and information concerning Plaintiff's 2020 Land Rover Range Rover Evoque, which is the subject of this lawsuit.

These documents are relevant to Plaintiff's claims. See, *Krotin v. Porsche Cars N. Am., Inc.*, 38 Cal.App.4th 294, 303 (1995) (an automobile manufacturer's "dealers' service records" are probative of whether a particular vehicle is defective). See, *Jensen v. BMW of N. Am., LLC*, 328 F.R.D. 557, 562 (S.D. Cal. 2019) ("records concerning the specific vehicle at issue" are relevant to proving liability under the SBA).

Defendant responds that all responsive documents to this request were produced on August 15, 2025, and there is nothing more to produce.

Plaintiff's Motion to Compel RFA 2 is DENIED. However, the Defendant is to supplement any additional corporate documents or information regarding the vehicle that has been generated since the documents were produced.

3. RFP 3 seeks customer complaints relating to defects alleged by plaintiff in vehicles of the same year, make, and model of car at issue.

Defendant's separate statement explains that the prevailing authority makes clear that the scope of discovery *includes* documents that relate to similar defects experienced by other consumers. *Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 143-144, 153 (evidence of special service bulletins issued before Plaintiff bought his truck and evidence of similar transmission problems in other trucks were relevant and admissible); *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 973, 978-979, 986 (documents of warranty complaints, service histories, and employee records concerning the subject defect in all affected vehicles and the company's responses and instructions regarding cure were discoverable and relevant to issue of defendant's good faith treatment of the problem); see also, *Norton v. Super. Ct.* (1994) 24 Cal. App. 4th 1750, 1760-1761 (an admissible document is necessarily discoverable); *Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117-1118 (if evidence is admissible based on caselaw, then it is discoverable)

Defendant responds that a Plaintiff need not look beyond her own service history and personal experience with his vehicle to know if the repairs have been successful. As the Court stated in *Oregel v. American Isuzu Motors Inc.* (2001) 90 Cal.App.4th 1094, 1102 n.8, the plaintiff need not present expert testimony concerning the cause of an alleged defect to prevail.

Plaintiff's motion to compel RFA 3 is GRANTED, for the same reasons stated in RFA 1.

Plaintiff to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006922

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: UPHOLD HQ INC.

vs.

DEFENDANT: GRACIELA RAMONA
HERNANDEZ ROMERO, ET AL

NATURE OF PROCEEDINGS: MOTION – PRO HAC VICE

RULING

On April 28, 2026, Plaintiff UpHold Hq, Inc. filed a Notice of Hearing on Verified Application for Admission *Pro Hac Vice*. The application explains that applicant Jack Ryan, Esq. seeks admission *pro hac vice* and to be allowed to act as co-counsel along with local counsel Mark B. Chassman, Esq. of Meister Seelig & Schuster LLP, on behalf of Plaintiff Uphold HQ, Inc. for purposes of this action only.

Defendants have not filed a response, nor was an opposition to the application filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Plaintiff's application is therefore GRANTED in it's entirely.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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